

The U.P. Dental Hygienist and Dental Mechanic Service Rules, 1993

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State of Uttar Pradesh - Act

The U.P. Dental Hygienist and Dental Mechanic Service Rules, 1993

UTTAR PRADESH

India

The U.P. Dental Hygienist and Dental Mechanic Service Rules, 1993

Rule THE-U-P-DENTAL-HYGIENIST-AND-DENTAL-MECHANIC-SERVICE-RULES-1993 of 1993

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The U.P. Dental Hygienist and Dental Mechanic Service Rules, 1993

Published vide Notification No. 2836/Section-8-Five-Eight 40-87, dated 13-7-1993 and published by U.P. Gazette dated 4th June, 1994

Part I ? General

1.

Short title and commencement.

(1)

These rules may be called the Uttar Pradesh Dental Hygienist and Dental Service Mechanic Service Rules, 1993.

(2)

They shall come into force at once.

2.

Status of the service.

- The Uttar Pradesh Dental Hygienist and Dental Mechanic Service is a subordinate service comprising Group 'C' posts.

3.

Definitions.

- In these Rules, unless there is anything repugnant in the subject or context-

(a)

"appointing authority" means the Additional Director (Dental) in the Directorate of Medical Health and Family Welfare, Uttar Pradesh;

(b)

"citizen of India" means a person who is or is deemed to be citizen of India under Part II of the Constitution;

(c)

"Constitution" means the Constitution of India;

(d)

"Director General" means Director General Medical, Health and Family Welfare, Uttar Pradesh;

(e)

"Member of service" means a person appointed in a substantive capacity under the provisions of these rules or the rules or orders in force prior to the commencement of these rules to a post in the cadre of the service;

(f)

"Governor" means the Governor of Uttar Pradesh;

(g)

"Government" means the State Government of Uttar Pradesh;

(h)

"service" means the Uttar Pradesh Dental Hygienist and Dental Mechanic Service;

(i)

"substantive appointment" means an appointment, not being an ad hoc appointment, on a post in the cadre of the service made after selection in accordance with the rules and, if there are no rules in accordance with the procedure prescribed for the time being by executive instructions issued by the Government;

(j)

"Year of recruitment" means a period of twelve months commencing from first day of July of a calendar year.

4.

Cadre of service.

(1)

The strength of the service and of each category of posts therein shall be such as may be determined by the Government from time to time.

(2)

The strength of the service and of each category of posts therein shall, until orders varying the same are passed under sub-rule (1) be as given in Appendix.

Provided that-

(a)

the appointing authority may leave unfilled or the Government may hold in abeyance any vacant post without thereby entitling any person to compensation;

(b)

the Government may create such additional permanent or temporary posts as he may consider proper.

Part III ? Recruitment

5.

Source of recruitment.

- Recruitment to the posts in the service shall be made by direct recruitment

6.

Reservation.

- Reservation for the candidates belonging to the Scheduled Castes, Scheduled Tribes and other categories shall be in accordance with the orders of Government in force at the time of recruitment,

Part IV ? Qualifications

7.

Nationality.

- A candidate for recruitment to a post in the service must be-

(a)

a citizen of India; or

(b)

a Tibetan refugee who came over to India before the 1st January, 1962 with the intention of permanently settling in India; or

(c)

a person in India origin who has migrated from Pakistan, Burma, Sri Lanka or any of the East African Countries of Kenya, Uganda, and the United Republic of Tanzania (Formerly Tanganyika and Zanzibar with the intention of permanently settling in India :

Provided that a candidate belonging to categories (b) and (c) above must be a person in whose favour a certificate to eligibility has been issued by the State Government:

Provided further that a candidate belonging to category (b) will also be required to obtain a certificate of eligibility granted by the Deputy Inspector General of Police, Intelligence Branch, Uttar Pradesh :

Provided also that if a candidate belongs to category (c) above, no certificate of eligibility will be issued for a period of more than one year and the retention of such a candidate in service beyond a period of one year, shall be subject to his acquiring Indian Citizenship.

Note. - A candidate in whose case a certificate of eligibility is necessary but the same has neither been issued nor refused, may be admitted to an examination or interview and he may also be provisionally appointed subject to the necessary certificate being obtained by him or issued in his favour.

8.

Academic Qualification.

- A candidate for direct recruitment to the posts in the service must have obtained certificate or diploma in Dental Hygiene or Dental Mechanic, as the case may be, from a recognised institution and must also be registered with the State Dental Council, Uttar Pradesh.

9.

Preferential Qualification.

- A candidate who has-

(i)

served in the Territorial Army for a minimum period of two years, or

(ii)

obtained 'b' certificate of National Cadet Corps, shall other things being equal be given preference in the matter of direct recruitment.

10.

Age.

- A candidate for direct recruitment must have attained the age of eighteen years and must not have attained the age of more than 32 (thirty two) years on the first day of July of the calendar year in which vacancies are advertised :

Provided that the upper age limit in the case of candidate belonging to the Scheduled Castes, Scheduled Tribes and such other categories, as may be notified by the Government from time to time shall be greater by such number of year as may be specified.

11.

Character.

- The character of a candidate for direct recruitment to a post in the service must be such as to render him suitable in all respect for employment in Government service. The appointing authority shall satisfy itself on this point.

Note. - Persons dismissed by the Union Government or by a State Government, or by a local Authority or a Corporation or Body owned or controlled by the Union Government or a State Government shall be ineligible for appointment to any post in the Service. Person convicted of an offence involving moral turpitude shall also be ineligible.

12.

Marital status.

- A male candidate who has more than one wife living or a female candidate who has married a man already having a wife living shall not be eligible for appointment to a post in the service.

Provided that the Governor may, if satisfied that there exist special grounds for doing so, exempt any person from the operation of this rule.

13.

Physical fitness.

- No candidate shall be appointed to a post in the Service unless he be in good mental and bodily health and free from any physical defect likely to interfere with the efficient performance of his duties. Before a candidate is finally approved for appointment he shall be required to produce a medical certificate of fitness in accordance with the rules framed under Fundamental Rule 10 contained in Chapter III of the Financial Hand-Book, Volume II, Part III.

Part V ? Procedure for Recruitment

14.

Determination of vacancies.

- The appointing authority shall determine the number of vacancies to be filled during the course of the year as also the number of vacancies to be reserved for candidates belonging to Scheduled Castes, Scheduled Tribes and other categories under rule 6.

The vacancies shall be notified to the Employment Exchange. The appointing authority may also invite application directly from the persons who have their name registered in the Employment Exchange. For this purpose the appointing authority shall issue an advertisement in a local daily newspaper besides pasting notice for the same on the notice board. All such applications shall be placed before the Selection Committee.

15.

Procedure for direct recruitment.

(1)

For the purpose of direct recruitment there shall be constituted a Selection Committee comprising -

(i)

Appointing Authority

...Chairman.

(ii)

An officer, not below the rank of Joint Director, belonging to Scheduled Castes or Scheduled Tribes, nominated by the Director General, if the appointing authority does not belong to Scheduled Castes or Scheduled Tribes. If the appointing authority belongs to Scheduled Castes or Scheduled Tribes, an officer other than belonging to Scheduled Castes or Scheduled Tribes nominated by the Director General.

...Member

(iii)

An officer, not below the rank of Joint Director belonging to minority community, nominated by the Director General.

...Member

(iv)

An officer not below the rank of Joint Director belonging to Backward Class, nominated by the Director General.

...Member

(2)

The Selection Committee, shall having regard to the need for securing due representation of the candidates belonging to the Scheduled Castes, Scheduled Tribes and other categories in accordance with rules 6, call for interview such number of candidates who fulfil the requisite qualifications as it considers proper.

(3)

The Selection Committee shall prepare a list of candidates in order of their proficiency as disclosed by the marks

obtained by each candidates in the interview. If two or more candidates obtained equal marks, the selection Committee shall arrange their names in order of merit on the basis of their general suitability for the Service. The number of names in the list shall be larger (but not larger by more than 25 per cent) than the number of vacancies. The Selection Committee shall forward the list to the appending authority.

Part VI ? Appointment, Probation, Confirmation and Seniority

16.

Appointment.

(1)

The appointing authority shall make appointments by taking the names of candidates in the order in which they stand in the list prepared under rule 15.

(2)

If more than one order of appointments are issued in respect of any one selection, a combined order shall also be issued, mentioning the names of the persons in order of seniority as determined in the selection.

17.

Probation.

(1)

A person substantively appointed to a post in the service shall be placed on probation for a period of two years.

(2)

The appointing authority may, for reasons to be recorded, extend the period of probation in individual cases specifying the date up to which the extension is granted:

Provided that, save in exceptional circumstances the period of probation shall not be extend beyond one year and, in no circumstance beyond two years.

(3)

If it appears to the appointing authority at one time during or at the end of the period of probation or extended period of probation that a probationer has not made sufficient use of his opportunities or his work and conduct is unsatisfactory, he may be reverted to his substantive post, if any, and if he does not hold a lien on any post, his services may be dispensed with.

(4)

A probationer who is reverted or whose services are dispensed with under sub-rule (3) shall not be entitled to any compensation.

(5)

The appointing authority may allow continuous service rendered in an officiating or temporary capacity in a post included in the cadre or any other equivalent or higher post to be taken into account for the purpose of computing the period of probation.

18.

Confirmation.

- A probationer shall be confirmed in his appointment at the end of the period of probation or the extended period of probation if-

(a)

his work and conduct is reported to be satisfactory,

(b)

his integrity is certified; and

(c)

the appointing authority is satisfied that he is otherwise fit for confirmation.

19.

Seniority.

- The seniority of persons substantively appointed in any category of posts shall be determined in accordance with the Uttar Pradesh Government Servants Seniority Rules,1991, as amended from time to time.

Part VII ? Pay Etc.

20.

Scales of pay.

- (i) The scale of pay admissible to persons appointed in the service, shall be such as may be determined by the Government from time to time.

(ii)

The scale of pay at the time of the commencement of these rules are given as follows ;

Name

of the posts

Scale of pay*

(i) Dental

hygienist.

Rs. 1200-30-1560-EB-40-2040

(ii) Dental

Mechanic

Rs. 1200-30-1560-EB-40-2040

* For latest Pay Scale, please see current G.O.

21.

Pay during probation.

- (i) Notwithstanding any provision in the Fundamental Rules to the contrary, a person on probation, if he is not already in permanent Government service shall be allowed his first increment in the time, scale when he was completed one year of satisfactory service and second increment after two years service when he has completed the probationary period and is also confirmed:

Provided that if the period of probation is extended on account of failure to give satisfaction such extension shall not count for increment unless the appointing authority directs otherwise.

(ii)

The pay during probation of a person already in permanent Government service shall be regulated by the relevant rules applicable to Government servants generally serving in connection with the affairs of the State.

22.

Criteria for crossing efficiency bar.

- No person appointed to the service shall be allowed to cross the efficiency bar unless he has worked diligently and to the best of his ability, his work and conduct is found to be satisfactory and unless his integrity is certified.

Part VIII ? Other Provisions

23.

Canvassing.

- No recommendations either written or oral, other than these required under the rules applicable to the post or service will be taken into consideration. Any attempt on the part of a candidate to enlist support directly or indirectly for his candidature will disqualify him for appointment.

24.

Regulations of other matters.

- In regard to the matters not specifically covered by these rules or by special orders, persons appointed to the service shall be governed by the rules, regulations and orders applicable generally to Government servants serving in connection with the affairs of the State.

25.

Relaxation from the conditions of service.

- Where the State Government is satisfied that the operation of any rule regulating the condition of service of persons appointed to the Service causes undue hardship in any particular case, it may notwithstanding any thing contained in the rules applicable to the case by order, dispense with or relax the requirements of that rule to such extent and subject to such condition as it may consider necessary for dealing with the case in a just and equitable manner.

26.

Saving.

- Nothing in these rules shall effect reservations or any other concessional required to be provided for the candidates belonging to the Scheduled Castes, Scheduled Tribes and other special categories of persons in accordance with the order of the Government assured from time to time in this regard.

Appendix	
[See Rule 4]	
Name of Posts	
Number of posts	
Permanent	
Temporary	
Total	
1. Dental Hygienist	
2. Dental	
Mechanic	
157	
1	
143	
?	
300	
1	
Related AI tags, queries and research notes	
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